
Parliamentary Briefing Pack

The Ministry of Justice “Probation-to-Police” Pilot
& the Splink Record-Linkage Programme

Prepared for: the Office of Iqbal Mohamed MP (Dewsbury and Batley)

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Web: brandonmyers.net | **Evidence:** github.com/btmaffiliate/uk-data-linkage-disclosure

Date: June 2026

Built entirely from public documents — chiefly the Government’s own Algorithmic Transparency Records. No non-public system was accessed. Every claim is graded by confidence; what is a pilot, or implied rather than stated, is flagged as such. This is not legal advice.

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PARLIAMENTARY BRIEFING NOTE

The Ministry of Justice "Probation-to-Police" Data-Sharing Pilot, and the Splink Record-Linkage Programme

Prepared for: the Office of Iqbal Mohamed MP (Dewsbury and Batley) **By:** Brandon Myers, independent public-interest researcher — brandonmyers.net **Date:** June 2026 **Status:** Built entirely from public documents (chiefly the Government's own Algorithmic Transparency Records). No non-public system was accessed. Claims are graded by confidence; what is a pilot, or implied rather than stated, is flagged.

1. One-paragraph summary

The Ministry of Justice has built and operates **Splink**, a free, open-source probabilistic record-linkage tool, to join records about the same person across the justice system — prisons, probation, and the courts — even where those records share no common identifier. Most of this is statistical/research use and is presented as such. But the MoJ's **own** published Algorithmic Transparency Record now also documents **operational, person-identifying** uses: a real-time "Core Person Record," the retrieval of an individual's probation history at court while a case is being prepared for sentence, and — the focus of this note — a **North Essex pilot in which the police numbers of people under probation supervision are sent to the police every day to check whether they have been arrested**. None of the transparency records describes any individual consent, notification, or opt-out, and none states an explicit statutory legal basis beyond a general "public task." This is lawful linkage migrating quietly from *counting populations* to *acting on named individuals* — without the people affected being told.

2. What Splink is (neutral, accurate)

- **Splink** is an open-source Python library for *probabilistic record linkage* (entity resolution), built and maintained by the **Ministry of Justice's** data-linking team and published openly. It implements the mainstream **Fellegi–Sunter** statistical model.
 - Its purpose is to decide, with a probability score, whether two records refer to the **same person** — across datasets that have no shared ID number (e.g. matching on name, date of birth, address fragments).
 - **The mathematics is not in question.** The method is standard and the published accuracy is high. The issue this briefing raises is **governance** — consent, transparency, purpose, and the slide from statistics into operations — not a technical flaw.
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3. The two faces of the same tool (the central point)

The MoJ runs Splink under **two distinct, publicly documented postures**, and the distinction matters:

(a) "Data First" — research, presented as ring-fenced. The gov.uk Algorithmic Transparency Record *MoJ: Data First (Splink)* (17 December 2024) describes de-identified linkage for accredited researchers via the ONS Secure Research Service and SAIL Databank. It states the data is **"not for operational decision-making"** and **"not integrated into a decision-making process."** Taken at face value, this is the legitimate, low-risk end.

(b) "Splink Master Record" — operational, person-identifying. The separate gov.uk Algorithmic Transparency Record *MoJ: Splink Master Record* (6 October 2025) documents the **same tool** in live operational use across four applications:

#	Application	What it does	Posture
1	JustLink	Weekly batch linkage producing an anonymised lookup table linking prisons (NOMIS), probation (DELIUS) and courts (Common Platform, LIBRA, FamilyMan, CaseMan).	Statistical/analytical
2	Probation in Court	Retrieves an individual's probation records when they come to court, "as part of the process of preparing a case for sentence."	Operational — feeds sentencing
3	Core Person Record	A real-time system assigning a single unique identifier to a person across prisons, probation and the criminal courts as records are created/updated.	Operational — live identification
4	Police data-sharing pilot (North Essex)	Identifies the Police National Computer (PNC) numbers of probation-supervised individuals; these are sent to the police each day to identify if any arrests have occurred.	Operational — daily police feed

***The single sentence that matters most** (MoJ's own transparency record): Splink "is used in courts to find probation records associated with individuals coming to court... It is being piloted as part of Core Person Record, a product that aims to create a unique identifier for persons across prisons, probation and the criminal courts... It is used to find Police National Computer (PNC) numbers associated with individuals, in order to request relevant arrest information from the police."*

This is the move from statistics to operations, in the Government's own words. "Data First" says the linkage is *not* for operational decisions; the "Splink Master Record" documents the same tool doing exactly that on named people.

4. Why it warrants parliamentary scrutiny

1. **No consent, no notification, no opt-out.** Neither transparency record describes any mechanism by which an individual is told their records are being probabilistically linked, or can object. The Master Record states there are "no complaint procedures specific to Splink." For a daily probation→police feed about named individuals, that is a significant accountability gap.
 2. **No explicit statutory basis on the face of the record.** The transparency records rest on an *implicit* "public task" basis ("data... routinely collected... for the purposes of managing court cases and offenders"). They do **not** cite a specific statutory gateway for the operational/cross-body linkage. Parliament is entitled to ask what the lawful basis is, and what DPIA was completed for the operational uses specifically (as distinct from the research use).
 3. **Probabilistic ≠ certain.** A probabilistic match is, by definition, sometimes wrong. When a *statistical* false-positive becomes an *operational* one — the wrong person's records pulled at sentencing, or the wrong PNC number flagged to police — the consequence falls on an individual. The error rates, thresholds, and what happens on a mis-match are not in the public record.
 4. **The legal guard-rail just moved.** The **Data (Use and Access) Act 2025** amended the UK GDPR's automated-decision-making provisions (the former Article 22), shifting solely-automated significant decisions from "prohibited unless" toward "permitted unless," with key boundaries set by **ministerial regulation** rather than statute. The operational use of probabilistic linkage in justice settings sits squarely in the territory that change affects.
 5. **Function creep is the pattern, not a one-off.** A research tool, ring-fenced in one transparency record, appears operationally in another. The structural risk is that the *same* engine serves both, one configuration apart.
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5. What this briefing does NOT claim (so the questions can't be deflected)

- It does **not** claim Splink is inaccurate or unlawful *per se*. The maths is sound; most use is lawful.
 - It does **not** claim Splink and **Palantir** are the same system or are technically linked. **They are not, and there is no documented connection.** Splink is the MoJ's own open-source tool; Palantir is a separate US-owned commercial platform used elsewhere in government. Questions about Splink go to the **MoJ**; questions about Palantir go to the **Home Office / DHSC**.
 - It does **not** claim the North Essex feed has been rolled out nationally. The transparency record describes it as a **pilot**. The legitimate questions are about its scope, evaluation, legal basis, and intended rollout.
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6. Recommended parliamentary approach

- **Written Parliamentary Questions to the MoJ** on the operational uses specifically — see the separate *Draft WPQs* document. They are written to be answerable, so that an evasive or "we do not hold that information" answer is itself revealing.

- Keep the **MoJ (Splink)** and **Home Office (Palantir)** tracks separate, as you have already begun, so neither department can answer one by pointing at the other.
- WPQ answers on this topic are often thin; the **follow-up** (and the contrast between the two transparency records) is where the accountability lies.

Full investigation, all nine parts and the complete evidence repository: see the Evidence Annex.

DRAFT WRITTEN PARLIAMENTARY QUESTIONS

Re: the MoJ Splink record-linkage programme and the "probation-to-police" pilot

For: the Office of Iqbal Mohamed MP. Use, cut, merge or re-word freely. **Drafting notes:** - Each question is written to be **specific and answerable**, and to reference the Government's *own* Algorithmic Transparency Records so the Department cannot plead ignorance of the system. - Questions are addressed to **the Secretary of State for Justice** unless marked otherwise. A short set for the **Home Office** (Palantir) is included at the end to keep the two tracks clean. - A "we do not hold this information" or refusal answer to several of these is itself newsworthy — they are designed so that evasion is conspicuous.

A. The North Essex "probation-to-police" pilot

1. To ask the Secretary of State for Justice, with reference to the Algorithmic Transparency Record "Splink Master Record," published 6 October 2025, whether her Department will publish the **Data Protection Impact Assessment** for the North Essex pilot in which Police National Computer numbers of individuals under probation supervision are shared with the police.
 2. To ask the Secretary of State for Justice what the **statutory legal basis** is for sharing the Police National Computer numbers of probation-supervised individuals with police forces on a daily basis under the pilot described in the "Splink Master Record" transparency record.
 3. To ask the Secretary of State for Justice whether there is a **data-sharing agreement or memorandum of understanding** governing the North Essex probation-to-police data-sharing pilot, and whether she will place a copy in the Library.
 4. To ask the Secretary of State for Justice **how many individuals'** Police National Computer numbers have been shared with the police under the North Essex pilot, and over what period.
 5. To ask the Secretary of State for Justice whether individuals whose Police National Computer numbers are shared with the police under the North Essex pilot are **informed** that their data is being shared, and whether any mechanism exists for them to **object**.
 6. To ask the Secretary of State for Justice whether the North Essex probation-to-police data-sharing pilot has been **evaluated**, and whether she plans to **extend** it to other police force areas or to a national footprint.
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B. The "Core Person Record" (real-time identification)

7. To ask the Secretary of State for Justice, with reference to the "Splink Master Record" transparency record, what **stage** the "Core Person Record" is at, and whether it is operating on

live, identifiable data about individuals in the prison, probation and criminal-court systems.

8. To ask the Secretary of State for Justice whether a **Data Protection Impact Assessment** has been completed for the Core Person Record, and whether she will publish it.
 9. To ask the Secretary of State for Justice what **decisions about individuals** the Core Person Record is used to inform or make, and whether any are **solely automated** within the meaning of the data protection legislation as amended by the Data (Use and Access) Act 2025.
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C. Probabilistic linkage, error and consequence

10. To ask the Secretary of State for Justice what the **target and observed false-positive (incorrect match) and false-negative (missed match) rates** are for the Splink record-linkage used operationally across prison, probation and court data.
 11. To ask the Secretary of State for Justice what **safeguards** exist to prevent an incorrect probabilistic match from resulting in the wrong individual's records being used in **preparing a case for sentence**, as described in the "Splink Master Record" transparency record, and what **recourse** an individual has if such an error occurs.
 12. To ask the Secretary of State for Justice what **match-probability threshold** is applied before a Splink-generated link between records about an individual is acted upon operationally.
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D. Legal basis, consent and the research/operational boundary

13. To ask the Secretary of State for Justice how she **reconciles** the statement in the "MoJ: Data First (Splink)" transparency record that the data is "not for operational decision-making" with the operational, person-identifying uses of the same Splink tool described in the "Splink Master Record" transparency record.
 14. To ask the Secretary of State for Justice whether the operational uses of Splink described in the "Splink Master Record" transparency record rely on **consent**, and if not, on what alternative lawful basis under the UK GDPR and Data Protection Act 2018 they rely.
 15. To ask the Secretary of State for Justice whether the **Information Commissioner's Office** has been consulted on, or has reviewed, the operational (non-research) uses of Splink across prison, probation, court and police data.
 16. To ask the Secretary of State for Justice whether she will commit to publishing a **single consolidated account** of every operational deployment of the Splink tool on identifiable individuals across the justice system, including the legal basis and DPIA for each.
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E. Optional — to the Home Office (the Palantir track; keep separate from the above)

H1. To ask the Secretary of State for the Home Department, further to the answers given on Data Protection Impact Assessments for the Palantir data-platform trial, whether her Department will publish the **unredacted** DPIA(s) for that trial.

H2. To ask the Secretary of State for the Home Department whether any data processed in the Palantir data-platform trial is **shared with, or derived from**, the Ministry of Justice's record-linkage systems, and if so, under what legal basis.

(H2 is worded to confirm — on the record — whether the two tracks meet. The honest research finding is that there is no documented link; a clear "no" from the Department closes that loop usefully, and anything other than "no" is significant.)

A note on sequencing: table the A and D blocks first — the North Essex pilot and the research/operational contradiction are the strongest, most concrete, and hardest to deflect. B, C and the Home Office set make good follow-ups once the first answers (and non-answers) are in.

FOI REQUESTS — Splink / MoJ probation-to-police pilot

This document contains: (A) a ready-to-send FOI request to the **Ministry of Justice** on the operational Splink uses; and (B) a note on the **parallel request open with the Australian Bureau of Statistics** on the same software, useful as international corroboration. An MP's office can of course also obtain much of this faster via Written Questions (see separate document) — the FOI route is complementary and produces the underlying documents.

A. Draft FOI request to the Ministry of Justice

To: data.access@justice.gov.uk (MoJ FOI/Disclosure team — confirm current address before sending) **Subject:** Freedom of Information request — operational use of Splink record linkage (probation-to-police pilot, Core Person Record)

Dear Ministry of Justice,

Under the Freedom of Information Act 2000, I request access to the following recorded information, held by the Ministry of Justice (and/or HM Prison and Probation Service), concerning the **operational** use of the Splink record-linkage tool as described in the published Algorithmic Transparency Record "Splink Master Record" (gov.uk, 6 October 2025). For clarity, this request concerns the **operational, person-identifying** uses, not the de-identified research use described in the separate "Data First (Splink)" record.

1. **DPIAs.** Any Data Protection Impact Assessment(s) for: (a) the North Essex pilot in which Police National Computer numbers of probation-supervised individuals are shared with the police; (b) the "Core Person Record"; and (c) the use of Splink to retrieve probation records at court for the preparation of a case for sentence.
2. **Legal basis.** Any document recording the legal basis (including the relevant UK GDPR Article 6 and, where applicable, Article 9/10 conditions, and any statutory gateway) relied upon for each of the three operational uses at (1)(a)–(c).
3. **Data-sharing arrangements.** Any data-sharing agreement, memorandum of understanding, or equivalent governing the sharing of Police National Computer numbers (or other probation data) with police forces under the North Essex pilot.
4. **Error and threshold metrics.** Any document recording, for the operational use of Splink: the target and observed false-positive (incorrect-match) and false-negative (missed-match) rates; the match-probability threshold(s) applied before a link is acted upon; and any procedure for handling or correcting an incorrect match that has been acted upon.
5. **Oversight.** Any correspondence with, or advice or assessment from, the Information Commissioner's Office concerning the operational (non-research) use of Splink.

6. **Scope/rollout.** Any document recording the intended scope, evaluation, or planned extension/rollout of the North Essex probation-to-police pilot and the Core Person Record.

If any document is exempt in part, I request the balance with exempt material redacted, and a schedule of documents stating the specific exemption claimed for each. I am content to receive documents electronically and am happy to consult to refine scope if a fees notice would otherwise apply. Given the subject concerns the processing of identifiable data about individuals in the justice system without their consent, I consider disclosure to be strongly in the public interest.

Yours faithfully, [name]

B. Parallel request — Australian Bureau of Statistics (international corroboration)

I have an FOI request open with the **Australian Bureau of Statistics** — reference **FOI2025-26_87** — seeking, in respect of the ABS "Person Linkage Spine" / Multi-Agency Data Integration Project (MADIP):

- the Privacy Impact Assessment(s) and any document identifying the linkage software/method and the **deterministic-to-probabilistic transition** (including whether Splink is used);
- the data-sharing authorisations under Australia's Data Availability and Transparency Act 2022 permitting linkage of **health (Medicare), welfare (Centrelink) and tax** records, and whether unsupervised probabilistic linkage is authorised;
- the linkage-quality / error metrics; and
- how match-probability/uncertainty is communicated to partner agencies for compliance/enforcement/automated-decision purposes.

Why this is useful to the MP's office: it demonstrates that the same open-source tool (Splink) is being deployed on **whole-of-population** health/welfare/tax data in a comparable jurisdiction, on the same probabilistic basis, with the same consent/transparency questions. It is a clean, on-the-record international parallel to the UK justice-system use — and the ABS has *publicly confirmed* (on its own website) that "for the first time in 2025, the Spine was constructed using Splink." If the UK Government tries to characterise the concern as niche or hypothetical, the Australian deployment shows it is neither.

(I will share the ABS's substantive response when it issues. The statutory 30-day clock is running; scope and any charges are currently being settled.)

C. Practical note for the office

- The MoJ holds the documents at (1)–(6); a WPQ can ask them to *publish* a DPIA, while an FOI *compels production* (subject to exemptions). Running both in parallel is the strongest approach — a WPQ answer that declines to publish, set against an FOI that produces (or withholds) the document, is itself informative.

- The most likely exemptions the MoJ will reach for are s31 (law enforcement) and s40 (personal data of third parties). Neither covers a **DPIA, a legal-basis memo, or a data-sharing agreement** in full — those are exactly the documents a public authority is expected to be able to disclose, at least in redacted form, and the public-interest balance favours disclosure for governance documents of this kind.

EVIDENCE ANNEX

Every factual claim in this pack, with its primary source

Principle: the strongest claims here are sourced to the Government's *own* published records. Where a claim is a pilot, an inference, or uncorroborated, it is flagged. Nothing in this pack relies on a non-public system.

Primary sources (Government's own records)

Claim	Source
Splink is the MoJ's open-source probabilistic record-linkage tool (Fellegi–Sunter)	github.com/voj-analytical-services/splink ; gov.uk "Splink: MoJ's open-source library for probabilistic record linkage at scale"
Data First is de-identified, research-only, "not for operational decision-making," "not integrated into a decision-making process"	gov.uk Algorithmic Transparency Record — MoJ: Data First (Splink) (17 Dec 2024)
Operational uses: JustLink; probation records retrieved at court for preparing a case for sentence; real-time Core Person Record; North Essex pilot sending PNC numbers to police daily	gov.uk Algorithmic Transparency Record — MoJ: Splink Master Record (6 Oct 2025)
Dataset record counts (LIBRA 19.6m; FamilyMan 20.9m; CaseMan 17.7m; Common Platform 2.9m; NOMIS 2.2m; DELIUS 2.4m)	gov.uk — Splink Master Record ATR
"No complaint procedures specific to Splink"; no consent/notification/opt-out described	gov.uk — Splink Master Record ATR
Splink built by MoJ data-linking team, ADR UK / ESRC funded; underpins Data First	IJPDS article 1794 (developer-authored, peer-reviewed)
Data (Use and Access) Act 2025 amended UK GDPR automated-decision-making provisions (former Art 22), with boundaries set by ministerial regulation	Data (Use and Access) Act 2025 (c.18); legislation.gov.uk

Key verbatim quotes (for citing in WPQs/correspondence): - *"The Data First datasets are not integrated into a decision-making process... not for operational decision-making."* — MoJ: Data First (Splink) ATR. - *"It is used in courts to find probation records associated with individuals coming to court... It is being piloted as part of Core Person Record, a product that aims to create a unique identifier for persons across prisons, probation and the criminal courts... It is used to find Police National Computer (PNC) numbers associated with individuals, in order to request relevant arrest information from the police."* — MoJ: Splink Master Record ATR.

Direct links

- **MoJ Data First (Splink) ATR:** <https://www.gov.uk/algorithmic-transparency-records/moj-data-first-splink>
 - **MoJ Splink Master Record ATR:** <https://www.gov.uk/algorithmic-transparency-records/moj-splink-master-record>
 - **gov.uk Splink overview:** <https://www.gov.uk/government/publications/joined-up-data-in-government-the-future-of-data-linking-methods/splink-moj-open-source-library-for-probabilistic-record-linkage-at-scale>
 - **Splink source code:** <https://github.com/moj-analytical-services/splink>
 - **IJPDS 1794 (Splink, peer-reviewed):** <https://ijpds.org/article/view/1794>
 - **Data (Use and Access) Act 2025:** <https://www.legislation.gov.uk/ukpga/2025/18>
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The full investigation and evidence repository

- **Investigation hub (start here):** <https://brandonmyers.net/writing/splink>
 - **The operational-use piece ("Statistics or Operations?"):** <https://brandonmyers.net/writing/statistics-or-operations>
 - **The legal-exposure piece ("Ruled Unlawful Next Door"):** <https://brandonmyers.net/writing/ruled-unlawful-next-door>
 - **Press kit (free to republish, citable facts):** <https://brandonmyers.net/writing/press>
 - **Evidence repository — every contract value, citation, and ~96 archived full-page source screenshots preserved against takedown:** <https://github.com/btmaffiliate/uk-data-linkage-disclosure>
 - **The three master analyses** (Splink global adopters; Palantir UK; Palantir global) live under `supporting/` in that repository.
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Confidence / honesty markers (read before quoting)

- **High confidence (Government's own record):** the existence and description of JustLink, Probation in Court, Core Person Record, and the North Essex PNC→police pilot; the "not for operational decision-making" statement in the Data First record; the absence of any described consent/opt-out.
- **Flagged as a pilot:** the North Essex feed and the Core Person Record are described by the MoJ as **pilots**, not national rollouts. Do not state otherwise.
- **Implied, not stated:** the **specific statutory legal basis** for the operational uses is *not* spelled out in the transparency records — it is an inference that "public task" (UK GDPR Art 6(1)(e)) is being relied upon. This is precisely why WPQ/FOI questions on the legal basis are worth asking.
- **Explicitly NOT claimed:** that Splink and **Palantir** are the same system or are technically linked — there is **no documented connection**, and the pack says so throughout. Splink = MoJ; Palantir = Home Office/DHSC, separately.
- **The error metrics** (false-positive/negative rates, thresholds) are **not in the public record** — which is why they are asked for, not asserted.